

Combating discrimination in education

Tenth consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960)

GENERAL INFORMATION:

Country name: SWEDEN

Organization or entity responsible for the preparation of the report: Secretariat for Policy Analysis and International Affairs, Ministry of Education and Research

I. Information on the legislative, judicial, administrative and other measures taken by the state at the national level

1. Ratification of the Convention¹

Is your country a State Party to the Convention?

☒ Yes

☐ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country:

☐ Close to ratification

☐ Underway

☐ Actively under preparation

- Please briefly explain the difficulties encountered in completing the ratification process and the means of overcoming them:

Describe:

→ *the obstacles, whether legal, institutional, political or practical*

→ *the means of overcoming them and the extent to which UNESCO can assist in completing the process*

☐ No, not considering ratification in the near future. Please explain why:

2. **Ratification of the Protocol² instituting a Conciliation and Good Offices Commission to be responsible for seeking the settlement of any disputes which may arise between States Parties to the Convention against Discrimination in Education**

Has your country ratified the Protocol?

☐ Yes

☒ No, please briefly explain the difficulties encountered:

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3. **Legal framework governing the protection of rights guaranteed in the Convention and the Recommendation in the national legal system**

In case your country is a State Party to the Convention:

- Is the Convention directly applicable in your country's domestic law following its ratification?

☐ Yes ☒ No

- If not, has it been incorporated into the national Constitution or domestic law so as to be directly applicable?

☐ Yes ☒ No

This seeks information on whether the provisions of the Convention are guaranteed in a domestic legal instrument. The report should list the main legal texts (Constitution, legislative text or other provisions) adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

According to the Instrument of Government (Regeringsformen), which forms part of the Swedish Constitution, all public institutions are to combat discrimination on grounds of gender, colour, national or ethnic origin, language, religion, disability, sexual orientation, age or other circumstance affecting the individual. The Discrimination Act (2008:567) (diskrimineringslagen) explicitly bans discrimination in the educational system related to a person's sex, transgender identity or expression, ethnicity, religion or other belief, disability, sexual orientation or age. In addition to prohibiting discrimination, the Discrimination Act (2008:567) also oblige preschools, schools and universities to actively prevent discrimination on grounds of gender, ethnicity, religion or other belief, disability, sexual orientation or age. The Discrimination Act (2008:567) entered into force on 1 January 2009. The Equality Ombudsman, (Diskrimineringsombudsmannen, DO) monitors compliance with the Discrimination Act. Degrading treatment of children and pupils is banned in the Education Act (2010:800) (skollagen). The Swedish Schools Inspectorate (Statens skolinspektion) and a special Child and School Student Representative (Barn- och elevombudet) monitors compliance with the Education Act. The Education Act (2010:800) has been in force since 1 July 2011.

Overall, the Education Act makes clear the importance of human rights as a central part of the school's democratic mandate. It specifies that education must communicate and establish respect for human rights and fundamental democratic values, which Swedish society is based on (Chapter 1, Section 4 of the Education Act). The Education Act also states that education in the Swedish school system shall be designed in accordance with fundamental democratic values and human rights such as the inviolability of human life, the freedom and integrity of the individual, equal rights, equality and solidarity between people. Everyone who attend the school system must promote human rights and actively combat all forms of abusive treatment (Chapter 1, Section 5 of the Education Act). Regarding equal access to education, all children and pupils, regardless of geographic residence and social and economic conditions, are to have the same access to education (Chapter 1, Section 8 of the Education Act). The education in the Swedish school system shall also be equivalent regardless of where in Sweden it takes place. The curricula are adopted by the government address the topics above.

The National Agency for Education (Statens skolverk), which is the central administrative authority for the public school system, provides support and guidelines, for example regarding value-based work as well as how to prevent degrading treatment in schools.

The law on incorporating the UN Convention on the Rights of the Child came into force on January 1st 2020. It entails a clearer obligation on courts and legal practitioners to consider the rights that follow from the CRC in deliberations and assessments that are part of decision-making processes in cases and matters concerning children.

Sweden is also party to the UN Convention on the Rights of Persons with Disabilities.

- Have the provisions of the Convention been invoked before and given effect to by courts, tribunals and administrative authorities?

☐ Yes ☒ No

If yes, please illustrate on the basis of available case law and jurisprudence. Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the rights guaranteed by the Convention and the scope of such competence.

National laws are invoked and is given effect by courts and administrative authorities.

In case your country is not a State Party to the Convention:

- Have legislative measures been taken pursuant to the Recommendation?

☐ Yes ☐ No

If yes, the report could list the main texts adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

- Please explain briefly the extent to which public policies and programmes correspond to the general provisions of the Recommendation.

Information supplied could demonstrate how such policies and programmes comply with commitments of the right to education under the Recommendation.

II. Information on the implementation of the Convention or Recommendation

1. Non-discrimination and equal opportunities in education in the context of Sustainable Development Goal 4 (SDG4)

Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation provide for non-discrimination and equal opportunities in education. This part relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity.

*This corresponds to the overall aspiration of SDG4 which aims to “**ensure inclusive and equitable quality education and promote lifelong learning opportunities for all**” by 2030. It therefore covers all the SDG4 targets, but also specifically SDG target 4.5.³*

- 1.1 Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the Convention/Recommendation (please tick all that apply)⁴ (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation prohibit discrimination in education
- ☒ Regulations prohibit discrimination in education
- ☒ Policies and programmes aim to eliminate and prevent discrimination in education
- ☒ Access to justice in case of violations of the right to non-discrimination in education
- ☒ Combatting discrimination in terms of curriculum
- ☐ Other:

There is a specific agency, the Equality Ombudsman (Diskrimineringsombudsmannen, DO), supervising compliance with the Discrimination Act (2008:567). Pursuant to the Act (2008:568) concerning the Equality Ombudsman, DO shall also work to ensure that discrimination associated with any of the discrimination grounds does not occur in any areas of society, provide advice and other support so as to enable anyone who has been subjected to discrimination to claim their rights and, inter alia, inform, educate and discuss with government agencies, enterprises, individuals and organisations.

A number of measures have been taken to strengthen children’s rights and their right to participation and influence. The law on incorporating the UN Convention on the Rights of the Child comes into force on 1 January 2020. The Children’s Ombudsman has been assigned by the Government with supporting municipalities, county councils and particularly relevant government agencies in the work to ensure the application of children’s rights within their operations. This remit applies during the period 2017–2019.

³ Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

⁴ See: Article/Paragraph 1(1).

The Government has assigned (Dir. 2018:99 and Dir. 2019:63) an inquiry chair to review what measures are needed to ensure compliance with the provisions on active measures in the Discrimination Act (2008:567). Chapter 3, Section 1 of the Discrimination Act, provides the following definition of active measures: "Active measures are prevention and promotion measures aimed at preventing discrimination and serving in other ways to promote equal rights and opportunities regardless of gender, transgender identity or expression, ethnicity, religion or other belief, disability, sexual orientation or age within a given establishment". Furthermore, the investigator shall review the supervisory responsibility over the Discrimination Act with regard to activities in accordance with the Education Act (2010: 800). The deadline for the report is 1 October 2021.

On 26 February 2020, the Government Offices decided that an investigator will assist the Ministry of Education and Research in preparing a proposal for a national plan for the school's work with security and study peace and submit proposals that ensure a functioning regulatory framework for security and study peace at schools (U2020/00707/S). The deadline for the commission is the 16th of December 2020.

On 28 June 2018, the Government decided to commission the National Agency for Education to be one of several strategic authorities with the task of promoting equal rights and opportunities for LGBTQ people within its area of activity.

The Living History Forum is a government agency assigned with serving as a national forum for promoting democracy, tolerance and human rights using the Holocaust as its starting point. The Government is conducting a national initiative to increase knowledge in schools and society and has given The Living History Forum a commission to implement a national initiative with enhanced educational initiatives on the Holocaust, antisemitism, antiziganism and other forms of racism. Various parts of the educational system, including the liberal adult education, are to be the focus of the initiatives. Civic orientation for newly arrived immigrants is also included in the assignment. The Government has also allocated funds to support remembrance trips to Holocaust memorial sites in 2018–2022. [See link.](#)

The curriculum for preschool and compulsory school as well as upper secondary education states that no one should be subjected to discrimination or other degrading treatment on the grounds of gender, ethnic affiliation, religion or other belief system, transgender identity or its expression, sexual orientation, age or disability. All such tendencies should be actively combated. Xenophobia and intolerance must be confronted with knowledge, open discussion and active measures.

The National Agency for Special Needs Education and Schools, SPSM, is to ensure that children, young people and adults – regardless of functional ability – have adequate conditions to fulfil their educational goals. This is done through special needs support, education in special needs schools, accessible teaching materials and government funding.

Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

- ➔ *Non-discrimination in the admission of pupils to educational institutions*
- ➔ *Non-differential treatment, including of foreign nationals resident in your country*

The Swedish education system is based on the principle of inclusion. In accordance with the Education Act (2010:80), all children and pupils, regardless of geographic residence and social and economic conditions, are to have the same access to education (Chapter 1, Section 8). Chapter 2, Section 18 of the Instrument of Government (Regeringsformen), states that all children for whom schooling is compulsory are entitled to a free basic education in the public education system.

The Discrimination Act (2008:567) prohibits discrimination in education on seven grounds, namely a person's sex, transgender identity or expression, ethnicity, religion or other belief,

disability, sexual orientation or age. Social origin, economic condition and political or other opinion are not covered by the Act, but degrading treatment of children or pupils not related to the above-mentioned protected grounds of discrimination is also prohibited in the Education Act (2010:800).

The Discrimination Act (2008:567) sets out an obligation to take active measures to prevent discrimination in the education system, which means that the education provider is to take measures to prevent any child, pupil or student who is participating in or applying for their activities from being subjected to harassment associated with sex, ethnicity, religion or other belief, disability or sexual orientation, or to sexual harassment. Education providers are also to draw up a plan each year containing an overview of the measures needed to promote equal rights and opportunities for the children, pupils or students.

In addition it can be mentioned that a Inquiry is presently working and has been extended several times. According to its directives (kom. dir. 2018:99), decided on the 30th of August 2018, the special investigator amongst other things is to evaluate which measures are needed to secure that the regulations in the Discrimination Act (2008:567) on “active measures” in amongst other the educational area, are followed.

The special investigator shall, amongst other things

- consider if the present rules in the Discrimination Act (2008:567) on monitoring as regards “active measures” are suited to achieve an effective compliance of the rules and if necessary propose changes that can lead to an increased compliance,
- analyse how the monitoring of the rules in the Discrimination Act as regards the areas regulated in the School Law, in its entirety can be moved to the School inspection, and
- propose necessary and complete proposals for regulations.

Initially the Inquiry should have finished its work in September 2019, but was prolonged to October 2020. However this autumn (2020) the survey has received additional directions. A partial report as regards the initial part of the assignment shall be submitted by the 15th of December 2020. As regards the new parts, a report shall be submitted at the latest by the 1st of October 2021.

As part of the new assignment the special investigator shall

- consider if there is a need for additional measures to strengthen the protection against discrimination in cases where there is no individual victims and
- depending on the Surveys considerations propose necessary and complete proposals for regulations.

Degrading treatment of children and pupils is banned in the Education Act (2010:800). Chapter 6, Section 10 of the Education Act (2010:800) states that the principal organiser of the school is responsible for ensuring that the school carries out targeted measures to prevent discrimination, harassment and degrading treatment of children and pupils. Staff in schools who learn that a pupil feels subjected to degrading treatment are obliged to report it to the head teacher. The head teacher, in turn, is then required to report the matter to the school’s principal organiser.

All education regulated by the Education Act must be free of charge and take the perspective of the child as its point of departure.

The Education Act stipulates that children who are asylum seekers have the right to attend preschool, preschool class and compulsory education. From 1 July 2013, the Act also stipulates that children who are staying in Sweden without a legal permit are entitled to education in preschool class and compulsory education.

In accordance with Chapter 7, Section 2 of the Education Act, children who are resident in Sweden have compulsory school attendance in accordance with the regulations in Chapter 7.

Chapter 29, Section 2 of the Education Act states that a resident of the country means a person who is to be registered in the population register in Sweden in accordance with the Population Registration Act (1991:481).

A person who is not registered in Sweden shall also be considered a resident of the country if the person:

1. is covered by section 1, first paragraph or section 1 a, first paragraph of the Act (1994:137) on the reception of asylum seekers and others,

2. stays here with the support of a time-limited residence permit according to Chapter 5, Section 15 of the Aliens Act (2005:716),

3. has the right to education or other activities under this Act as a result of EU law, the Agreement on the European Economic Area (EEA) or the Agreement between the European Union and its Member States, of the one part, and Switzerland, of the other, on free movement for persons,

4. is a family member of a person who belongs to a foreign power mission or paid consulate or its service or who is referred to in Section 4 of the Act (1976:661) on Immunity and Privileges in Certain Cases and who is not covered by 3, or

5. stay here without the support of an official decision or constitution.

If a decision on expulsion or deportation has been issued against someone referred to in the second paragraph 1, he or she shall still be considered to be resident in Sweden on that basis until he or she leaves the country. If the person who has been rejected or expelled abstains so that the decision cannot be enforced, the person shall, however, be regarded as resident in Sweden on the grounds specified in the second paragraph 5.

Restrictions on the right to education for those referred to in the second paragraph follow from Section 3. Lag (2017: 582).

Chapter 29, Section 3 of the Education Act states that the persons referred to in Section 2, second paragraphs 1 and 2, are entitled to education in secondary school and secondary school for children with learning disabilities only if they have started the education before they have reached the age of 18. They are not entitled to education in municipal adult education.

The persons referred to in Section 2, second paragraph 4, are only entitled to education in pre-school class, compulsory school, compulsory special school, special school and Sami school.

The persons referred to in Section 2, second paragraph 5, are only entitled to education in pre-school class, compulsory school, compulsory special school, special school, Sami school and, if they start education before the age of 18, upper secondary school and upper secondary school for children with learning disabilities.

Political goals and national strategies are set to strengthen the activities of the educational sector with regards to equality and equity.

1.2 Please indicate actions taken by your government to guarantee equal access to all levels and types of education in your country (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation guarantee equal access to education
- ☒ Regulations ensure equal access to all levels and types of education
- ☒ Policies and programmes ensure equal access to all levels and types of education
- ☐ Other:

As regards the Discrimination Act (2008:567), reference is made to the answer to p 1.1 and 1.2 in the previous report.

In addition it can be mentioned that the Bill to the Parliament (Riksdagen) on active measures that is described in the previous report, passed and entered into force on the 1st of January 2017, as proposed. (SFS 2016:828).

Please find below a Link to the Discrimination Act in its present wording in Swedish and an inofficial translation to English:

Swedish: https://www.riksdagen.se/sv/dokument-lagar/dokument/svensk-forfattningssamling/diskrimineringslag-2008567_sfs-2008-567

English: <https://www.do.se/other-languages/english/discrimination-act/>

- Please indicate the relevant legal, regulatory or policy texts and provide a brief description of the measures taken:

This notably is covered under SDG target 4.1 and partly target 4.b⁵

As regards the Discrimination Act (2008:567) see the answers under pp 1.1 and 1.2 above.

In accordance with the Education Act (2010:800), all children and pupils, regardless of geographic residence and social and economic conditions, are to have the same access to education (Chapter 1, Section 8). Chapter 2, Section 18 of the Instrument of Government states that all children covered by the general compulsory school attendance have the right to free basic education in public school.

1.3 Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes (several items could be ticked/mentioned):

- | | |
|---|---|
| ☐ Providing financial incentives and fellowships | ☒ Providing auxiliary assistance |
| | ☒ Adapting education infrastructure |

⁵ Which calls on states to “substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes”.

- ☐ Providing positive or affirmative action measures
- ☒ Ensuring inclusion in mainstream schools for all learners
- ☒ Training teachers on inclusive education
- ☐ Ensuring gender parity in science, technology, engineering and mathematics (STEM) and technical and vocational training (TVET)
- ☐ Providing re-entry programmes for young mothers
- ☐ Eliminating all barriers for pregnant girls or young mothers in education
- ☐ Other:
- ☒ Adapting curricula and methods
- ☒ Providing language classes to newcomers (e.g. refugees)
- ☐ Eliminating administrative barriers to education⁶
- ☒ Providing flexible learning pathways
- ☐ Valuing diversity in schools
- ☒ Combatting stereotyping and stigmatisation

As regards the Discrimination Act (2008:567) reference is made to the answer to p 2.3 in the previous report.

Several inquiries are ongoing or being processed to address inequality and educational quality. One is to analyse the possibility to close schools with major and recurring shortcomings (U2020/04703/GV). The Government has also appointed an inquiry on A more equitable school (U 2018:05), which is to analyse, and propose measures to reduce school segregation and improve the allocation of resources to preschool classes and compulsory schools in order to increase equity in the types of school affected. The Government has furthermore appointed an inquiry on the planning and dimensioning of upper secondary education (U 2018:01); its remit includes producing proposals that can promote equitable education and reduce segregation in upper secondary schools.

The Government has carried out a number of initiatives to increase access to special educational needs teachers, such as the opportunity for teachers to carry out special teacher training specialising in e.g. deafness or hearing impairment, visual impairment or learning disabilities.

In 2016 the Government decided on a new government grant to enable schools to employ more special educational needs teachers and to offer further training. Since 2018, knowledge of neuropsychiatric disabilities is included in all special education programs. According to the new degree objectives, students should have knowledge of neuropsychiatric difficulties and be able to apply the knowledge in different learning environments. Students should also be able to examine different scientific perspectives on neuropsychiatric difficulties. Special education programs curricula cover other types of disabilities as well.

In 2017, the Swedish Parliament decided on a new national goal for disability policy. The new goal states that: "The national goal for disability policy, taking the UN Convention on the Rights of Persons with Disabilities as a starting point, is to achieve equal living conditions and full participation in society for persons with disabilities in a society based on diversity. This goal shall contribute towards greater gender equality and consideration of the children's rights perspective." In order to achieve the national goal, the implementation of disability policy shall be targeted towards four areas: the principle of universal design; shortcomings in terms of accessibility; individual support and solutions for individual support; and preventing and countering discrimination. This decision also involves several measures aiming to contribute towards the national goal for disability policy, including human rights education.

⁶ Administrative barriers to education include, amongst others, lack of identity papers or birth certificates required to enrol.

In 2016, the Government initiated a three-year project aimed at increasing the competence for the UN Convention on the Rights of the Child, which includes the Swedish National Agency for Education. See also answers below on equal opportunities and support in education.

The National Agency for Special Needs Education and Schools, SPSM, ensures that children, young people and adults – regardless of functional ability – have adequate conditions to fulfil their educational goals. This is done through special needs support, education in special needs schools, accessible teaching materials and government funding.

- Please elaborate further on the measures taken, including those to ensure *gender equality and the empowerment of girls and women in and through education*:

In both compulsory school and upper secondary school, the differences in the knowledge results between girls and boys and women and men, respectively, are noticeable, and where girls and women, have higher grades and complete their studies to a greater extent than boys and men. There are also clear differences in the results between students with a foreign background and students with a Swedish background and between students with different socio-economic backgrounds. It is a development that emphasizes the importance of the school's compensatory mission. In order to provide additional opportunities for support for pupils in compulsory school and upper secondary school who, for example, risk not gaining eligibility for upper secondary school national programs or leaving upper secondary school without a high school diploma, the Government considers in the 2021 budget bill that state subsidies for homework help and teaching during school holidays should be increased. In the Budget Bill for 2021, the Government thus proposes that the grant be increased by SEK 170,000,000 in 2021 and by SEK 100,000,000 in 2022 and 2023.

Several of the school's course and subject syllabuses describe how gender equality should be included in the teaching, both directly and indirectly. It can, for example, be about sexuality and reproduction or questions about identity, gender equality, relationships, love and responsibility in biology. In August 2018, the Government decided on an ordinance on a revised curriculum for preschools. The new curriculum (Lpfö18) has been prepared by the National Agency for Education and entered into force on 1 July 2019. The Government's memorandum states, among other things, that those who work in preschool must promote the equal value of all people, equality between women and men, girls and boys. No child shall be subjected to discrimination in preschool on the grounds of sex, transgender identity or expression, ethnicity, religion or other belief, disability, sexual orientation or age, in the child or anyone related to the child, or to other abusive treatment. All such tendencies must be actively counteracted. The new curriculum for preschool contains, among other things, clearer writings regarding gender equality, integrity and highlights the children's language development.

In order to provide better conditions for promoting students' reading ability, the Government estimates in 2021 budget bill that the allocation needs to be increased by SEK 25,000,000 per year in 2021–2023.

If the Parliament (Riksdagen) decides in accordance with the Government's proposal in 2021 budget bill, the Government will co - finance Sweden's Municipalities and Regions (SKR) project Assignment completed education with SEK 8 million per year 2021 and 2022. Within the assignment, SKR offers e.g. process support and competence development initiatives for principals who want to make a conscious and strategic investment in order for the preventive work and more young people to become eligible for upper secondary school and complete their studies.

The Government has appointed an inquiry chair to propose how to improve the situation of pupils who risk not being eligible for national programmes at upper secondary school (terms

of reference 2020:21). The inquiry chair is also to propose how to give newly arrived pupils in Years 7–9 of compulsory school and in the introduction programme in upper secondary school more time for tuition.

In July 2017, the Government appointed an inquiry ('Better opportunities for compulsory school pupils to achieve the minimum national knowledge requirements') with the remit of mapping and analysing schools' work in connection with support and student health, and to submit proposals in order to create better opportunities for pupils to achieve the minimum knowledge requirements. The inquiry has received several additional directives. The supplementary directive (Directive 2019:38) states that the inquiry chair e.g. shall analyze how pupils can better receive support measures linked to the learning environment and group affiliation and propose necessary constitutional amendments. In June 2020, a partial report was submitted in this part. In August 2020, the interim report was referred. The final report is to be presented by 28 February 2021.

On 16 March 2017, the Government commissioned the National Agency for Education and the National Board of Health and Welfare to carry out a three-year development work with the aim of strengthening collaboration between student health, health care and social services so that children and young people receive early and coordinated efforts (U2017 / 01236 / S). In February 2020, the Government decided that the assignment would be changed in such a way that within the framework of previous assignments, special efforts would also be directed at risk groups among children and young people in socially vulnerable areas, and children and young people at risk of honor-related violence and oppression. This is part of the Government's work to intensify efforts against both gross violence and new recruitment to gangs and network environments, as well as honor-related violence and oppression (U2020 / 00363 / S).

Since 2018 the Swedish Agency for Youth and Civil Society (MUCF) has had the commission of supporting actors, primarily municipalities, working with young people not in employment, education or training. As part of this commission, MUCF is working on promoting early and coordinated action by local actors for young people not in employment, education or training and spreading knowledge about issues concerning these young people, including successful ways of working. The Agency is also working on identifying systemic barriers to their entry to employment, education and training and reporting them to the Government and other national actors. The final report on this commission is to be presented to the Government Offices (Ministry of Culture) by 15 December 2021.

- Please indicate whether your country has adopted and reviewed legislation related to the minimum age for marriage so that it conforms to international standards (18 years):

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

Yes ☒ No ☐

Please provide reference to the relevant laws and provisions:

. Chapter 2, Section 1 states that anyone under the age of 18 may not enter into a marriage (2014: 376).

2. Progress made with respect to implementing the right to education in the context of SDG 4

2.1 Pre-primary education

Pre-primary education is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of early childhood care and education (ECCE) over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation⁷. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

- Is compulsory and free of charge pre-primary education available in your country?

■ Pre-primary education is compulsory: Please provide the age of enrolment and duration:

In accordance with Chapter 7, Sections 4 and 10 of the Education Act (2010:800), the compulsory attendance at school shall begin to be fulfilled in the preschool class in the autumn semester of the calendar year in which the child reaches the age of six. Chapter 9, Section 3 of the Education Act (2010:800) states that the education in preschool class shall be conducted during one school year, which consists of an autumn semester and a spring semester.

■ Pre-primary education is free of charge for all: Please provide the duration:

In accordance with Chapter 9, Section 8 of Education Act (2010:800), the education in preschool shall be free of charge. Pupils must have free access to books and other teaching tools needed for a timely education and be offered nutritious school meals. Fees in connection with the application for a place may not be charged. For information about duration, see above question concerning duration.

- Please list the laws and policies that ensure the availability of pre-primary education for all and provide information on the difficulties experienced by your government in the realization of access to pre-primary education. Brief quantitative information could be added.

The Discrimination Act is applicable also in pre-schools.

In accordance with Chapter 8, Section 15 of the Education Act (2010:800), a child shall be offered a place at a preschool unit as close to the child's own home as possible. Reasonable consideration must be given to the wishes of the child's guardian.

In 2018, 95 percent of all three-year-olds and 94 percent of all four-year-olds in Sweden were enrolled in preschool. In general, children with a Swedish background are to a greater extent enrolled in preschool than children with a foreign background. Swedish background refers to children born in Sweden with at least one parent born in Sweden. Foreign background refers to children born abroad, or children born in Sweden with both parents born abroad. (In the section, these definitions also apply to students.) In 2019, 85.8 percent of children with a Swedish background in the age group 1–5 years were enrolled in preschool, while 81.7 percent of children with a foreign background in this age group were enrolled in preschool. There was no major difference between girls and boys. (Budgetprop. 2020/21:1 Utgiftsområde 16, s. 21, s. 61). The Government has therefore in October 2019 appointed a special investigator who, among other things, shall submit proposals aimed at increasing participation in preschool among children aged 3–5 (Directive 2019: 71). The assignment shall be reported no later than October 2020.

2.2 Universal primary and secondary education

Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Is primary education compulsory in your country?

☒ Yes ☐ No

Please indicate the current duration period of compulsory education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to primary education. Quantitative information could be added.

In accordance with Chapter 7, Section 4 of the Education Act (2010:800), the compulsory attendance at school shall begin to be fulfilled in the preschool class. Thereafter, the compulsory school attendance shall be fulfilled in the compulsory school or in the school form where the child is received in accordance with section 5, 6 or 7, unless the compulsory school attendance is fulfilled in some other way in accordance with the provisions of Chapter 24. Chapter 7, Section 10 (2010:800) states that the compulsory school attendance begins the autumn semester the calendar year when the pupil turns six and the compulsory school attendance ceases at the end of the spring semester of the tenth year.

- Is primary education available free of charge to all?

☒ Yes: Please provide the duration and indicate the extent to which it is.

For this, please list the laws and policies that ensure the universal and free availability of primary education and indicate whether direct and indirect costs are charged (such as tuition fees, exam fees, schools supplies, uniforms, transport costs and compulsory levies on parents).

In accordance with the Education Act (2010: 800), the education in compulsory school, compulsory school for children with intellectual disabilities, special school and Sami school must be free of charge.

Chapter 10, Section 10 (2010:800) states that the education in compulsory school shall be free of charge. Pupils must have free access to books and other teaching tools needed for a timely education and be offered nutritious school meals. Fees in connection with the application for a place may not be charged.

According to Chapter 10, Section 32, a pupil in compulsory class with a public responsible authority is entitled to free school transport from a place adjacent to the pupil's home to the place where the education is conducted and back, if such a move is necessary in view of the length of the route, traffic conditions, the pupil's disability or any other special circumstance.

☐ No: Is your country already engaged in legal and policy reforms to work towards universal and free primary education?

☐ Yes ☐ No

- Please briefly provide information on the reforms taken:

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training in your country.

- Is secondary education (middle/high) available free of charge?

- Yes: Please provide the duration and describe the extent to which it is.

Please list the laws and policies that ensure the free availability of secondary education and describe whether direct and indirect costs are covered (such as tuition fees, exam fees, school supplies, uniforms, transport costs and compulsory levies on parents).

In accordance with Chapter 1, Section 8 of the Education Act, all children and pupils, regardless of geographic residence and social and economic conditions, are to have the same access to education. Upper secondary education (including the introductory programmes) as well as upper secondary schools for individuals with intellectual disabilities are free of charge. Pupils shall have free access to books and other learning tools needed for a modern education. Fees in connection with the application for a place shall not be charged (Chapter 15, Section 17 and Chapter 18, Section 17 of the Education Act). Furthermore, Chapter 18, Section 30 states that pupils in upper secondary schools for individuals with intellectual disabilities, with a public responsible authority, have the right to free school transport within the home municipality from a place adjacent to the pupil's home to the place where the education is conducted and back, if such transport is needed with regard to route length, traffic conditions, student disability or any other special circumstance.

All municipalities in Sweden are obliged by law to offer all young people who have completed compulsory school an upper secondary education (Chapter 15, Section 30 and Chapter 16, Section 43 of the Education Act). The same applies to all young people who have not completed compulsory school but are eligible for education on an introductory programme (Chapter 17, Section 16) or young people who are eligible for education in upper secondary special school (Chapter 18, Section 4).

- ☐ No: What are the measures your government intends to take to ensure free secondary education?

- Is secondary education (middle/high) compulsory in your country?

☐ Yes ■ No

- Please provide details on its implementation and indicate the duration of compulsory secondary education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to secondary education. Quantitative information could be added.

Upper secondary school is non-compulsory, but almost all pupils continue from compulsory school to upper secondary school. Approximately 98 percent of all young people start in one of the various forms of education in upper secondary school. In the autumn of 2019, about 355,000 students went to upper secondary school, which is an increase of 2,720 students or about 1 percent compared to the year before. The secondary education must start at the latest within the first six months of the year they turn 20.

Upper secondary education consists of both preparatory programmes for higher education and vocational programmes. There are also introductory programmes for those pupils who are not eligible for a national program in upper secondary school. There are also upper secondary schools for individuals with intellectual disabilities. There, the different study programmes are mainly focused on professional preparation. Most young persons with functional impairment of different kinds attend ordinary upper secondary school, but there are also four special national upper secondary schools in different parts of Sweden for students with severe physical disabilities. Here, students are guaranteed personal care, boarding houses, treatment and training.

To increase the number of pupils with completed compulsory education as well as to strengthen the equivalence in education, the Government has taken several measurements. See answer in II 1.3 regarding for example state subsidies for homework help and teaching during school holidays and measures concerning students' reading ability and 2.6 on Education personnel.

- Indicate whether your country has adopted and reviewed legislation related to the minimum age of entry into employment so that it is aligned with the end of compulsory education:

Please note that minimum age labour laws and those related to compulsory education interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes ☒ No ☐

- Please provide reference to the relevant laws and provisions:

Chapter 7, Section 13 of the Education Act (2010: 800) states that for the pupil who has not completed the highest year when compulsory schooling would otherwise have ceased, compulsory schooling ceases instead one year later, but no later than when the pupil reaches the age of 18.

In accordance with Chapter 5, Section 2 of the Work Environment Act (1977:1160) a minor may not be engaged for or perform work, as an employee or in any other capacity, before the calendar year in which the minor attains the age of 16 or before the minor has completed her or his compulsory education. Notwithstanding the provisions of the first paragraph, a minor who has attained the age of 13 may be engaged for, or perform, light work that will not have a detrimental effect on the minor's health, development or education.

2.3 Higher education

Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3⁸, and target 4.4⁹.

- Please indicate the measures adopted to ensure that there is no discrimination on the grounds prohibited by the Convention/Recommendation¹⁰ to enter and complete higher education, including technical and vocational education and training (several items could be ticked/mentioned):

- Constitutional laws and/or legislation prohibit discrimination in higher education, including technical and vocational education and training
- Regulations prohibit discrimination in higher education, including technical and vocational education and training
- Policies and programs aim to eliminate and prevent discrimination in higher education, including technical and vocational education and training

☐ Other:

- Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

➔ *Non-discrimination in the admission of students to higher education institutions on the grounds prohibited by the Convention/Recommendation*

➔ *Non-differential treatment, including of foreign students*

As regards the Discrimination act (2008:567), see 1.1 and 1.2 above. Reference is also made to the previous report 3.3 b).

In addition, as has been described under 1.2, there is an obligation to take active measures to prevent discrimination in the education system. As also has been described previously, amendments were made as from the 1st of January 2017.

The Swedish Council for Higher Education, the public agency responsible for admission, supports the work of higher education institutions as regards increasing diversity, promoting equal rights and opportunities in higher education and combating discrimination. This is done through evaluations, analyses, conferences and education.

- Please indicate efforts made by your government to ensure that higher education is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items could be ticked/mentioned):

Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic,

⁸ Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

⁹ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

¹⁰ See: Article/Paragraph 1(1).

Social and Cultural Rights, further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”.

- Higher education is generally free of charge
- Higher education is accessible on the basis of individual capacity as assessed by reference to relevant qualifications and experience
- Higher education is accessible through financial incentives and scholarships
- ☐ Higher education is accessible through positive or affirmative action measures
- ☐ Higher education is accessible through credit transfer system between states
- ☐ Other:

- Please elaborate on the measures taken and provide brief information on the financial costs to receive education in higher public or private education institutions, if higher education is not free of charge.

In this part, you may also provide information on the difficulties experienced by your government as regards access to higher education and on the progress realized. Quantitative information could be added.

Access to higher education, based on individual capacity, is realised to a high extent in Sweden. The main goal of the educational system is that each citizen should have access to high quality education regardless of sex, social or economic background, place of residence, etc. Higher education is also available to adults.

The Government had tasked The Swedish Higher Education Authority with mapping to what extent the higher education institutions are working the widening access.

The National Agency for Special Needs Education and Schools', SPSM, task is to ensure that children, young people and adults – regardless of functional ability – have adequate conditions to fulfil their educational goals. This is done through special needs support, education in special needs schools, accessible teaching materials and government funding. SPSM cooperates with universities and other institutions of higher education in networks and we participate in educational programmes and courses.

2.4 Adult education and alternative learning

Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the efforts made by your government to establish a system of continuing education and equitable access to learning and training opportunities (several items could be ticked/mentioned):

- Provision of education for persons who have not received or completed the whole period of their primary education
- Provision of literacy programmes
- Provision of appropriate learning and life-skills programmes
- Provision of free of charge learning opportunities
- Provision of flexible learning pathways
- Provision of professional training and qualifications
- ☐ Other:

- Please elaborate further on the measures taken:

Municipal adult education

Municipal adult education, which is part of the national adult education system, provides adults with skills at levels corresponding to compulsory school (basic adult education) and upper secondary school (upper secondary adult education). Municipal adult education is regulated by Chap. 20 of the Education Act and the Ordinance [2011:1108] on Adult Education (förrordningen om vuxenutbildning).

Since 2017, the Government has introduced a right for adults to study courses they need in adult education on upper secondary level in order to meet the eligibility requirements for university studies and for studies at higher vocational education. This is a significant extension of the previous entitlement to complete compulsory schooling.

Education for adults with intellectual impairment

Education for adults with intellectual impairment is another part of the public adult education system. This scheme, which is divided into basic adult education and upper secondary level education, is intended for adults with intellectual impairment or acquired brain injury.

New regulation regarding municipal education and education for adults with intellectual impairment

In 2020 the Government presented a bill (Prop. 2019/20:105) to the Swedish Parliament (Riksdagen) regarding municipal adult education. The bill contains proposals for amendments to the Education Act (2010:800). The proposals aim, among other things, at municipal adult education (municipal adult) to a greater extent contributing to working life's need for skills and better meeting adults' need for education at different stages of life. This means i.a. that the overall goals of the education are supplemented so that it is clear that the education must also form a basis for the national and regional supply of skills to working life and provide a good basis for the students' further education. Furthermore, it is proposed that the priority rule within municipal adult education be changed so that those with the greatest need for education are given priority. This means that not only those with the least education but also, among others, the unemployed and adults in need of a change of profession must be given priority in selection for the education. The same Government bill also consists of proposals that states that education for adults with intellectual impairment shall no longer be a separate school form

within the school system but shall be included in the school form municipal adult. Some parts of the new regulation have already entered into force 1 July 2020.

Swedish tuition for immigrants

Swedish tuition for immigrants forms part of the public adult education system in Sweden. The purpose of the scheme is to provide learners with basic Swedish language skills. It also aims to give adult immigrants who cannot read or write the chance to acquire these skills. Immigrants must be given the opportunity to develop their ability to communicate in Swedish – orally and in writing – in everyday situations, social settings and working life. Swedish for immigrants must also prepare learners for further studies.

Municipalities are required to offer Swedish language instruction to all adult immigrants who lack basic Swedish language skills. Instruction should normally begin within three months of registration of residence in the municipality. Depending on the learner's educational background and previous knowledge, she or he is placed in one of three differently paced study tracks, with the right to progress to course D in study track 3, regardless of which track she or he started in.

Folkbildning

Folkbildning is a form of non- formal learning and an umbrella term for a variety of educational formats conducted at folk high schools and study associations. Currently, there are 10 adult education associations and 155 folk high schools in Sweden that are all eligible for state funding. The adult education associations offer activities in all 290 Swedish municipalities. The folk high schools currently offer long courses (two or more weeks) in 152 municipalities.

The general classes at folk high schools are designed for students with incomplete primary or secondary education. Some of the classes are especially aimed for example for students with disabilities or other mother tongues than Swedish. In the general classes on secondary education level 41% of the participants had a disability (2019).

Measures in the 2021 budget bill

In the Budget Bill 2021, the Government proposes a number of initiatives to expand the number of study places in regional vocational education for adults (regional yrkesvux), Learning centers (Lärcenter) and Higher Vocational Education. In the same Bill, the Government also propose that the state subsidy for liberal adult education (folkbildning) is strengthened so that the student unions can conduct more initiatives aimed at foreign-born women and, if necessary, other target groups who are far from work.

2.5 Quality education provision and learning environment

Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

- Please indicate the measures taken by your country to ensure equivalence in all educational institutions with regard to (several items could be ticked/mentioned):

- Establishment of minimum norms and standards in education
- Establishment of conditions relating to the quality of the education provided (e.g. infrastructure, learner/teacher ratios, teaching and learning materials, use of ICT)

- Adoption of legal or regulatory provisions to ensure that children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools).
- Please elaborate further on the measures taken:

To provide such quality assessment, please take into account all educational institutions of the same level. You may include information on policies, protocols or codes of conduct.

According to the Education Act (2010:800), all pupils should be given the guidance and encouragement they need in their learning and in their personal development process. The guidance and encouragement should be based on the pupil's personal capabilities for them to develop as much as possible according to the educational goals.

Measures regarding equivalence

The Government is taking several initiatives to promote equality in schools and is implementing targeted initiatives for schools with challenges.

The state subsidy for strengthened equality and knowledge development in schools will, from 2021, exceed SEK 6 billion. The Government grant will be used to expand ongoing initiatives or carry out new initiatives that strengthen equality and knowledge development in e.g. Primary School.

In the budget bill for 2021 (Prop. 2020/21: 1, ed. 16) the Government proposes a temporary general increase in state support for the school system by SEK 1 billion in 2021. The funds will, among other things, create conditions for the municipalities to be able to offer increased teaching time, personnel reinforcements and better conditions for personnel. The purpose is to ensure that all children and students receive the education they are entitled to.

In order to strengthen the schools and further increase the students' knowledge results, the Government proposes in the budget bill for 2021 a sharp increase in state support for schools in areas with socio-economic challenges. In 2021, SEK 385 million will be set aside. For 2022, SEK 420 million is set aside and from 2023, SEK 405 million will be set aside annually. Within the framework of the Government's assignment on Collaboration for the best school, the National Agency for Education shall, in dialogue with principals, continue to implement initiatives with the aim of raising knowledge results in schools and increasing equality within and between school units. The efforts will be directed at school units with low knowledge results or a high proportion of students who do not complete their studies and who have or are judged to have difficult conditions to improve their results on their own. The National Agency for Education shall, in collaboration with each principal concerned, identify initiatives that can strengthen the principals' ability to plan, follow up and develop the education in accordance with the purpose of this assignment (U2019 / 03786 / S).

Other measures taken to increase equivalence in education, pupils' performance and the quality of education is listed in the following sections of this report (II 1.3 and II 2.6).

Study peace and school's work with safety

On 26 February 2020, the Government Offices decided that an investigator will assist the Ministry of Education and Research in preparing a proposal for a national plan for the school's work with safety and study peace and submit proposals that ensure a functioning regulatory framework for safety and study peace at schools ([U2020/00707/S](#)). The investigator shall i.a. map and analyze the different parts of the school's work with questions regarding safety and study peace. In the survey and analysis, the investigator must pay special attention to what affects how disciplinary measures are used as well as questions about students' exposure to

sexual harassment and violence and threats, e.g. honor-related violence and oppression. The deadline for the commission is the 16th of December 2020.

2.6 Education personnel

Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession (several items could be ticked/mentioned):

- ☐ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels)
- ☒ Initial training and continuous professional development is provided
- ☒ Minimum standards and qualifications are required for the teaching profession
- ☐ Measures taken to strengthen the social status and attractiveness of the teaching profession
- ☒ Performance monitoring systems
- ☐ Measures taken to increase women in leadership positions in education
- ☐ Other:

In the Swedish decentralised education system, local education providers are responsible for the conditions for teaching staff. These conditions are usually established through negotiations between teachers' unions and the employer or the employer's organisation.

- Please briefly elaborate further on the measures taken:

The Government has introduced many reforms and initiatives for teachers to make the teaching profession more attractive and get more skilled teachers.

On 15 September 2016, the Government appointed an inquiry to submit proposals with the aim of providing better conditions for teachers, pre-school teachers, principals and pre-school principals to carry out their assignments. This meant i.a. to review the eligibility and identification rules (Directive 2016:76).

On 12 March 2018, the inquiry regarding A better school through more attractive school professions (U 2016:06) submitted its final report “With teaching skills at the center - a framework for teachers 'and principals' professional development” (SOU 2018: 17).

In the budget bill for 2020, the Government propose that funds should be allocated from 2021 as a first step in the establishment of a professional program. The funds constitute an important basis for the part of the program that aims to establish a national merit system for preschool teachers and teachers. In the Budget Bill for 2020, the assessment has also been made that a national structure for a professional development offer should be created and that conditions are provided for the professionals to be able to contribute to and drive the development of professional skills. The Government propose in the Budget of 2021 that additional funds are set aside for such competence development: SEK 42 million in 2021, SEK 102 million in 2022 and SEK 181 million in 2023 for the efforts in the professional programs.

The Government is also implementing continued reforms to increase the teacher density in schools in areas with socio-economic challenges in order for more students to have the opportunity to learn in accordance with the goals of education policy, e.g. through the total and increased state subsidy to education providers who establish career steps for teachers in schools with particularly difficult conditions based on the students' socio-economic background.

The National Agency for Education handles a state subsidy for the employment of teaching assistants (ordinance [2019:551] on state subsidies for the employment of teaching assistants), with the aim of increasing teachers' ability to focus on teaching and tasks that belong to teaching. For 2020, SEK 465 million was set aside for this purpose.

- Have there been instances of discrimination as regards the training for education personnel in your country?

☐ Yes: Has your government addressed this issue?

☐ Yes

☐ No

☒ No

2.7 Respect for human rights and fundamental freedoms

Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.¹¹ Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items could be ticked/mentioned):

☒ Curriculum includes human rights education

☒ Educational and/or extracurricular activities are organized on human rights education

☐ Other:

According to the Education Act (2010:800), all pupils should be given the guidance and encouragement they need in their learning and in their personal development process. The guidance and encouragement should be based on the pupil's personal capabilities for them to develop as much as possible according to the educational goals.

¹¹

Which calls on states to "ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture's contribution to sustainable development".

As previously stated, the Government has taken a number of initiatives to strengthen the quality of education for all students and make it more equivalent. See e.g. answers 1.3 on equal opportunities in education, 2.5 on quality education and 2.6 on Education personnel.

The Education Act (2010:800) clearly emphasises the importance of human rights as a normative foundation for all activities covered by the Act. Under the Act, all education should convey and establish respect for human rights and the fundamental democratic values that Swedish society is based on. The Government has assigned the Swedish National Agency for Education with offering schools and education providers in compulsory and upper secondary education extensive continuing professional development in different areas, called 'national school development programmes'. One of these designated areas is the fundamental values in schools which include gender equality, a norm-critical perspective and the prevention of degrading treatment and harassment.

All pupils have the right to good education about sex education. This requires trained teachers with adequate competence in the field. Reviews of sex education in schools show that many teachers find teaching sex education a challenge, and that more knowledge in these issues is needed. To strengthen newly graduated teachers' ability to teach questions about identity, sexuality and relationships, the Government is now introducing new degree objectives in teacher education. The new degree objectives will enter into force on 1 January 2021 and will be applied in education from the autumn semester of 2021.

A number of previous initiatives have been implemented in the field of education due to #metoo. To strengthen the preventive work against sexual harassment, the National Agency for Education has developed support and tools for school development of sex education and the work against abusive treatment. With the digital support material Koll on the work against sexual harassment and the online education Sex education in primary school in recent years, school staff can strengthen and develop sex education and the work against abusive treatment. In 2018, the National Agency for Education,

On behalf of the Government, the National Agency for Education has recently presented proposals for curriculum changes to better support sex education. In the assignment, the National Agency for Education would especially consider that issues of honor-related violence and oppression, consent and pornography be covered by sex education. The National Agency for Education's proposal is currently being prepared within the Government Offices.

How girls and boys are treated and assessed in school is an integrated part of sex and human relationship education in Swedish schools to actively and consciously promote the equal rights and equal opportunities of women and men.

Also see answer in I 1.1. regarding The Living History Forum.

The law on incorporating the UN Convention on the Rights of the Child came into force on January 1st 2020.

Sweden is also party to the UN Convention on the Rights of Persons with Disabilities

2.8 Private education

Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for private education.

- Does your country have a regulatory framework relating to the establishment and functioning of private educational institutions?

Yes ☒ No ☐

- Please provide a brief description:

In Sweden, municipalities are responsible for carrying out education for children, youths and adults at primary and secondary level. This is to be done according to national regulations and goals set by the Riksdag (the Swedish parliament), the Government and the National Agency for Education. Apart from municipal schools, there are also independent grant-aided schools, which can be run by e.g. organisations and companies. An independent school owner must be approved by the National Schools Inspectorate to be permitted to start an independent school and to be awarded the entitlement of a public grant by the municipality.

Grant-aided independent schools should provide education under the same rules as education offered in public schools. The Education Act applies to both public schools and independent schools, and provides a common regulatory system. Independent schools should teach the same democratic values as municipal schools run. A further principle, also laid down by law, is that independent schools are open to everyone. Cases which imply that it might not be the case are under scrutiny or addressed by courts.

The Swedish Schools Inspectorate ensures that local authorities or independent schools follow the relevant laws and regulations. This may include the right of access to the education an individual is entitled to and the right to be given support to achieve the education goals.

If an independent school does not follow the Schools Inspectorate's demands, there is a possibility for the authority to withdraw approval of the school and its right to receive grants, which means that the school must close. A decision to withdraw approval of an independent school and the right to grants can be appealed to a general administrative court.

Under the Education Act (2010:800), teaching in the school system should be non-confessional. However, the Education Act stipulates a possibility for independent schools to, outside of teaching, include confessional elements within the education provided. However, these elements are to be strictly voluntary.

- Do legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation¹² explicitly apply to private educational institutions?

Yes ☒ No ☐

- Please briefly describe what laws, regulations or policies guarantee that the development of private education does not generate discrimination and that private schools offer a relevant alternative in your country:

See the above box.

- Does your country have an education policy framework for minimum educational standards as regards the rights of the parents /legal guardians for providing religious and moral education for their children?

Yes ☐ No ☒

2.9 Rights of national minorities

¹²

See: Article/Paragraph 1(1).

Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. National minorities, who often face language barriers, are among the specific groups referred to in the Convention.

- Please indicate the legal, policy and regulatory measures that protect the rights given to national minorities to carry out their own educational activities (several items could be ticked/mentioned):

- Constitutional laws and/or legislation protect the right to education of national minorities
- Legislation or regulations guarantee the right of national minorities to study in their mother tongue
- Curriculum is adapted to national minority needs
- Teachers are trained to adapt to national minority needs
- Other:

Teacher shortages and specifically with the subject competence in minority languages of meänkieli, romani chib and jiddisch limit the access for pupils to minority language teaching.
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- Please provide a brief description of the provisions:

The Language Act (2009:600) stipulates that the national minority languages in Sweden are Finnish, Yiddish, Meänkieli (Tornedal Finnish), Romany Chib and Sami and that it is to be possible, in a manner that is comparable to that of Swedish, to use, develop and learn these languages through the agency of the public sector. The same right applies to Swedish sign language. The Act on National Minorities and Minority Languages (2009:724) entered into force on 1 January 2010. There is also sectoral legislation that lays down specific rights for the national minorities, including the right to mother tongue tuition in Chapters 10–13, 15 and 18 of the Education Act (2010:800) and the possibility of bilingual teaching (Chapter 9, Sections 12–13 of the School Ordinance [2011:185]). Sami school, years 1–6, gives those pupils who are taught there specific language and cultural education (Chapter 13 of the Education Act).

Preschool and preschool class should contribute to give children the opportunity to develop both the Swedish language and their mother tongue. On 1 January 2019, an amendment to the Education Act (2010:800) entered into force, enhancing the right to preschool education in Finnish, Meänkieli and Sami in municipalities that fall within an administrative area.
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According to Chapter 8, Section 12 a of the Education Act, a home municipality that is within an administrative area under the Act on National Minorities and National Minority Languages must offer children whose parents or guardians so request, a place in a preschool where all or a significant part of the education is conducted respectively in Finnish, Meänkieli or Sami. It also states that parents or guardians applying for a preschool place for their child must be asked whether they wish to have a place in such a preschool.

Changes to the Education Act which entered into force on 1 July 2015 gave pupils who belong to any of the national minorities a stronger right to mother tongue tuition in their national minority language. In 2014 the National Agency for Education was commissioned by the Government to draw up proposals for specified syllabi content for compulsory school, compulsory school for pupils with learning disabilities, special school and Sami school in the subject mother tongue for the national minority languages Finnish, Romani Chib, Meänkieli and Yiddish – as first and as second languages. The Agency reported back on 8 September 2015 and the syllabi entered into force on 1 July 2016.

According to the Education Act pupils who belong to one of the five national minorities in primary, lower and upper secondary school in Sweden are entitled to mother tongue tuition even if the language does not represent the daily means of interaction in the pupil's home.

Pupils in primary and lower secondary school who belong to one of the national minorities are not required to have any prior knowledge of their national minority language in order for the education provider, the body that runs the school, to be obliged to offer mother tongue tuition.

In upper secondary school, which in Sweden includes both higher education preparatory programmes and vocational programmes, prior knowledge is however required. In both compulsory and upper secondary school, the education provider is obliged to organise mother tongue tuition in the national minority languages even if only one pupil at the school applies for tuition in the language concerned. However, the requirement that a suitable teacher must be available also applies to the national minority languages.

Upper secondary school pupils, who belong to one of the national minorities are, as mentioned, entitled to teaching in their mother tongue even if the language does not represent the daily means of interaction in the pupil's home. However, pupils need to have good knowledge of the language, which will be the case, given that the amendments to the Education Act have now given pupils greater opportunities to study the language at compulsory school level. Pupils can also study their national minority language – Finnish, Sami, Yiddish, Meänkieli or Romani Chib – as a language option at upper secondary school. Studies can start at a level based on the pupil's existing skills.

- As regards the educational standards in educational institutions run by minorities, please describe the existing legal and policy framework:

Information could also cover the language facilities, such as the availability of teaching in the mother tongue of the students, use of teaching of languages in education policy, multilingualism, etc.

Sámi schools

The aim of Sámi schools is to offer Sámi children a Sámi education where they learn about Sámi culture, history and traditions, as well as the Sámi language. Education in Sámi schools corresponds to education up to year 6 of compulsory Swedish school. The Sámi Education Board (Sameskolstyrelsen) is a government agency, and therefore the State is the responsible authority for Sámi schools. Pupils often continue their education in years 7–9 of compulsory school in a municipal school with integrated Sámi education.

The Sámi Education Board was established in 1981 by decision of the Riksdag. The Sámi Parliament appoints chairs and members of the Board and the Director of Schools. The Board has a secretariat located in Jokkmokk that is led by the Director of Schools. In addition to education, the Sámi Education Board also promotes the development and production of teaching materials for Sámi teaching. The Board also assists municipalities with outreach activities among the Sámi and provides information about Sámi schools and Sámi teaching in the municipal school system.

Activities are regulated by the Education Act. The Sámi Education Board may also carry out the municipality's duties in preschools for Sámi children by agreement with the municipality.

There are five Sámi schools, all located in municipalities in the administrative area of protecting and promoting the Sámi languages in correspondence to the Minority Language Act. Teaching in Sámi schools is conducted in three variants of the Sámi language, Lule Sámi, Northern Sámi

and Southern Sámi, as both a first and a second language, and in Swedish, as both a first and a second language. There are preschools and out-of-school centres at all Sámi schools.

Jewish studies

From autumn 2011, organisers of secondary schools are allowed to offer education in Jewish studies. This subject aims to increase opportunities for Jewish pupils to deepen their knowledge about their own culture, history, traditions and religion. As a language choice, pupils are allowed to choose Hebrew and Yiddish.

More about the rights of national minorities

Five national minorities are recognised in Sweden, Sami (which is also an indigenous people), Swedish Finns, Tornedalers, Roma and Jews. Their languages are Sámi, Finnish, Meänkieli, Romani chib and Yiddish. Specific minority language legislation applies to certain geographical administrative areas for Sami, Finnish and Meänkieli. Under the Act on National Minorities and National Minority Languages (2009:724), individual citizens are entitled to use Sami, Finnish and Meänkieli in their dealings with the authorities and courts of law and in certain geographical areas. Article 10 of the same Act entitles individuals to use Sami and Finnish for written communication with e.g. the Equality Ombudsman. Parts of the website of the Equality Ombudsman (www.do.se) and the Swedish Schools Inspectorate (www.skolinspektionen.se) are translated to the national minority languages.

Mother tongue tuition and bilingual tuition have an important role to play in supporting and strengthening the minority languages. Pupils in compulsory or upper secondary school can receive mother tongue tuition in a national minority language, provided that there is a suitable teacher available. No other prerequisites apply to pupils belonging to a national minority. Roma children can also receive tuition in two mother tongue languages if they are immigrants to Sweden.

There is also a possibility to arrange classes with bilingual tuition. A municipality or an independent school can arrange bilingual tuition in school years 1–6 for a group of pupils entitled to mother tongue tuition. A maximum of half of the teaching hours may be used for teaching in the mother tongue. Bilingual tuition for Finnish pupils is allowed in years 1–9.

2.10 Rights of refugees and migrants

The rights of refugees and migrants are not explicitly provided for in the Convention/Recommendation. However, the Convention and Recommendation call on states to eliminate and prevent discrimination in education based notably on national origin.¹³ In this context, a number of Member States that participated in the 9th Consultation reported on measures adopted to ensure refugees' and migrants' right to education. Growing displacement and influx of refugees worldwide and the emergence of major educational challenges in this area, as well as the frameworks recently adopted by the international community,¹⁴ demonstrate the opportunity for states to report on measures adopted to include refugees and migrants in their educational systems.

Besides, this aspect also corresponds to SDG target 4.5, which calls on states to “ensure equal access to all levels of education and vocational training for the vulnerable”, including “children in vulnerable situations”, and covers the majority of SDG4 targets.

¹³ Articles/Paragraphs 1 and 3.

¹⁴ Namely the 2016 New York Declaration for Refugees and Migrants, the Comprehensive Refugee Response Framework and the two Global Compacts on refugees and for safe, orderly and regular migration.

- Please briefly describe the existing legal and policy framework that protects the right to quality education for refugees and migrants in your country.

Chapter 29, Section 2 of the Education Act (2010:800) stipulates that children who are asylum seekers have the right to attend preschool, preschool class and compulsory education. From 1 July 2013, the Act also stipulates that children who are staying in Sweden without a legal permit are entitled to education in preschool class and compulsory education.

Swedish tuition for immigrants forms part of the public adult education system in Sweden. The purpose of the scheme is to provide learners with basic Swedish language skills. It also aims to give adult immigrants who cannot read or write the chance to acquire these skills. Immigrants must be given the opportunity to develop their ability to communicate in Swedish – orally and in writing – in everyday situations, social settings and working life. Swedish for immigrants must also prepare learners for further studies.

Municipalities are required to offer Swedish language instruction to all adult immigrants who lack basic Swedish language skills. Instruction should normally begin within three months of registration of residence in the municipality. Depending on the learner's educational background and previous knowledge, she or he is placed in one of three differently paced study tracks, with the right to progress to course D in study track 3, regardless of which track she or he started in.

- Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education (several items could be ticked/mentioned):

- ☒ Inclusion in mainstream education
- ☒ Provision of language courses
- ☒ Specific training for educational staff
- ☒ Initiatives addressing discrimination and promoting cultural diversity and mutual acceptance
- ☒ Alternative administrative procedure (placement tests, portfolio of evidence, etc.)
- ☒ Accelerated learning programmes
- ☒ Non-formal and/or alternative education programmes
- ☒ Financial support
- ☐ Other innovative measures:

Please briefly elaborate further on the measures taken:

On behalf of the Government, the National Agency for Education implements initiatives to strengthen the quality of education for children and students who are new arrivals or have a mother tongue other than Swedish (U2019 / 03787 / S). The assignment includes school forms from preschool to adult education.

The Government has appointed an inquiry chair to propose how to improve the situation of pupils who risk not being eligible for national programmes at upper secondary school (terms of reference 2020:21). The inquiry chair is also to propose how to give newly arrived pupils in Years 7–9 of compulsory school and in the introduction programme in upper secondary school more time for tuition.

The Government has assigned the Swedish National Agency for Education with offering schools and education providers in compulsory and upper secondary education extensive continuing professional development in different areas, called 'national school development programmes'. One of these designated areas is newly arrived and multilingual children and pupils' learning.

III. Methods used to draw the attention of the various authorities in the country to the instruments and to remove the obstacles encountered

1. Challenges and obstacles

1.1 Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country (several items could be ticked/mentioned):

- Challenges related to equitable access and inclusion in education (such as poverty and socio-economic factors, cultural and traditional attitudes, remoteness, migration and displacement, etc.)

Evidence actually suggest that inequality in education outcomes (ie. differences based on gender and socioeconomic factors and differences between schools) are increasing, as per longitudinal analysis of PISA results and other studies.

- Challenges related to the quality of education (such as shortages of qualified, trained and motivated teaching staff, non-supportive or inadequate teaching and learning as well as school environment, etc.)

Access to competent teachers is absolutely crucial to Swedish schools. There is a shortage of authorised teachers in key areas. Shortage regarding specialised teachers can be actual as well.

- Challenges relating to the system and governance (such as budgetary constraints, lack or weakness of monitoring systems – including the lack of reliable data, absence of supportive/inconsistent/obsolete legal and policy environment, lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels, etc.)

Due to regulatory matters it is difficult to have statistics regarding children, pupils and adults with disabilities.

- Other:

The overall assessment is that the Education Act and the Discrimination Act together, to a large extent, constitute a framework that covers the purpose of the Convention. Therefore, there are no significant difficulties encountered in implementing the Convention.

1.2 Please provide a brief assessment of the effectiveness of the methods introduced to remove the obstacles encountered:

Sweden has a decentralised education system that gives local municipalities large scope for autonomy. The Swedish National Agency for Education is responsible for evaluation and assessment of measures implemented and co-operates with the Swedish Schools Inspectorate,

the National Agency for Special Needs Education and Schools Swedish Institute for Educational Research.

2. Awareness-raising

UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (several items could be ticked/mentioned)

- ☒ Translation of the Convention/Recommendation into the national and possibly local languages
- ☐ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education
- ☐ Increased public awareness through advocacy material on the Convention/Recommendation or the core principles of the right to education
- ☐ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments
- ☐ Other:

We note that there is generally available information about rights and duties in relation to applicable laws but no direct information about the convention itself.

A digital hearing with public agencies and CSO was held as a part of the process of finalizing this report.